

26STCV07314 26STCV07314

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Case Number: 26STCV07314 Hearing Date: July 20, 2026 Dept: 732

Jesus Cortez, et al v. General Motors, LLC, et al.

Monday, July 20, 2026

CASE NUMBER: 26STCV07314

OPPOSED

Defendant General Motors,
LLC's Demurrer and Motion to Strike Portions of the First Amended Complaint

Facts:

This is a lemon law action. The Complaint alleges as follows. Plaintiffs Jesus Cortez and Berenice Cortez purchased a 2024 Cadillac Escalade on June 14, 2024, with an express written warranty. (FAC ¶¶ 5, 8.) The vehicle was delivered with defects that could not be remedied within the warranty period. (FAC ¶¶ 12–13.)

Procedural History: Plaintiffs

filed the original complaint on March 3, 2026, and filed the FAC on April 7, 2026, alleging four causes of action:

1.

Implied Warranty of Merchantability

2.

Express Warranty

3.

Fraudulent Concealment

4.

Consumer Legal Remedies Act

Defendant

filed the present demurrer and motion to strike on May 12, 2026.

Plaintiff

filed an opposition on July 7, 2026.

Defendant

filed a reply on July 13, 2026.

Analysis

I.

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See id. § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Id. at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]”])

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Mahan v. Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (Schifando v. City of Los Angeles, supra, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (Krawitz v. Rusch (1989) 209 Cal.App.3d 957, 967.)

Defendant General Motors, LLC (“Defendant”) demurs to Plaintiffs Jesus Cortez and Berenice Cortez’ (“Plaintiffs”) third cause of action for fraudulent concealment and fourth cause of action for violation of the Consumer Legal Remedies Act (“CLRA”). (Demurrer at pp. 8–14.)

Defendant argues that Plaintiff fails to allege the elements of fraud. (Demurrer at pp. 10–15.) ‘The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]’ [Citation.]” (Hambrick v. Healthcare Partners Medical Group, Inc. (2015) 238 Cal.App.4th 124, 162.) The elements of concealment, as with ordinary fraud, must be pleaded with

specificity. (See *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1472.)

Fraud causes of action must be pleaded with particularity, meaning that the plaintiff must allege “how, when, where, to whom, and by what means the representations were tendered.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

Defendant argues that the FAC fails to adequately plead the information that was concealed or Defendants’ exclusive knowledge thereof for the purposes of a concealment claim. (Demurrer at pp. 8–9.) But the Complaint pleads the information at issue — the existence of a defect in the subject vehicle’s 6.2L V8 engine, specifically with its “lifters,” which begin with noises, escalate to smoke and loss of power, then may culminate in total engine failure. (FAC ¶¶ 16, 35, 36.) It is alleged that Defendant had exclusive knowledge of this defect from sources not available to the public prior to Plaintiffs’ purchase of the vehicle. (FAC ¶ 135; *Heliotis v. Schuman* (1986) 181 Cal.App.3d 646, 651 [identifying “exclusive knowledge” as a basis for the duty to disclose].) It is alleged that Defendant intended by its concealment of the defect to induce the purchase of the vehicle. (FAC ¶ 138.) And it is alleged that Plaintiffs would not have purchased the vehicle had they known of the defect. (FAC ¶ 139.) Fraudulent concealment is thus alleged.

Defendant argues that there was no transactional relationship between the manufacturer and Plaintiff such that it owed a duty to disclose the alleged defect. (Demurrer at pp. 9–11; see *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 312 [transaction giving rise to duty to disclose “must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large”].) But such a relationship exists here. Although Plaintiff does not allege that they purchased their vehicle from Defendant, it was Defendant that provided them with the warranty that they are here alleged to have breached. (FAC ¶ 8.) It is also alleged that the selling dealership was Defendant’s agent. (FAC ¶ 105.) Thus a transactional relationship is alleged.

Defendant finally argues that Plaintiff fails to plead a violation of the CLRA, because although the FAC relies on violations of that law addressed to a seller’s false representations related to its goods or services (See Civ. Code § 1700, subd. (a)(5),

(7), (9), (14); FAC ¶¶ 149–161), Plaintiff pleads no affirmative misrepresentations. (Demurrer at pp. 12–14.) But courts have recognized that a violation of the CLRA may arise from fraudulent concealment, not merely “the suppression of a fact that is contrary to a representation that was made,” but “the suppression of a fact by one who is bound to disclose it,” including under the traditional circumstances in which a duty to disclose may be found. (Collins v. eMachines, Inc. (2011) 202 Cal.App.4th 249, 255.) Defendant thus alleges no independent defect in the CLRA claim.

Accordingly, the demurrer is OVERRULED.

II.

MOTION TO STRIKE

Any

party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435(b)(1)). The notice of motion to strike a portion of a pleading shall quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count or defense. (California Rules of Court Rule 3.1322.)

The grounds for a motion to strike shall appear on the face of the challenged pleading or form any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437(a)). The court then may strike out any irrelevant, false, or improper matter inserted in any pleading and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (Perlman v. Municipal Court (1979) 99 Cal.App.3d 568, 575.)

Defendant moves to strike the prayer for punitive damages in the FAC because no cause of action or underlying facts are alleged that are capable of supporting the prayer. (Motion at pp. 4–6.)

Punitive damages are allowed in non-contract cases when a

defendant is guilty of "oppression, fraud, or malice" (Civ. Code § 3294, subd. (a).) The terms are defined as:

1.

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

2.

"Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

3.

"Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294, subd. (c).)

Something more than the mere commission of a tort is always required for punitive damages. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 894.) Proof of negligence, gross negligence, or recklessness is insufficient to warrant an award of punitive damages. (Dawes v. Sup.Ct. (Mardian) (1980) 111 Cal.App.3d 82, 88–89.) Punitive damages may be recovered in an action for negligence or other nonintentional torts if the plaintiff pleads and proves that the defendant acted with the state of mind described as "conscious disregard" of the potential dangers to others. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.) When malice is based on a defendant's conscious disregard of Plaintiff's rights, the conduct must be both despicable and willful. (College Hospital v. Superior Court (1994) 8 Cal.4th 794, 713 ("College Hospital").)

The motion is predicated upon the infirmity of Plaintiffs' claim for fraudulent concealment, which as explained above, survives demurrer, and therefore supplies a basis in "fraud" by which Plaintiffs may seek punitive damages.

The motion is therefore DENIED.

Superior Court of California

County of Los Angeles

Department 732

Jesus
cortez, et al.,

Plaintiffs

v.

GENERAL MOTORS, LLC, et al.,

Defendants.

Case No.:
26STCV07314

Hearing Date: July 20, 2026

[TENTATIVE] RULING RE:

Defendant General Motors, LLC's Demurrer and
Motion to Strike Portions of the First Amended Complaint

Defendant
General Motors, LLC's Demurrer and Motion to Strike Portions of the First
Amended Complaint are OVERRULED and DENIEED.

Defendant to give notice.

Dated: July 20, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court